executive privileges to detain suspects on suspicion of sedition as it did in a time of emergency'. Yet, as she is careful to point out,[6] 'there was no immediate threat of emergency except by the circular reasoning that the lack of repressive measures might potentially cause the government to face a political emergency'.[7] Nevertheless, there is no escaping the fact that 'it is demonstrable that the presence of the revolutionaries on the political landscape during these crucial inter-war years strengthened the anticolonial front, even as they tested and ultimately redefined the policy of nonviolence'.[8]

By 1925, just five years after the anti-Rowlatt protest, the colonial government enacted a series of emergency ordinances and legislative acts that authorized police and intelligence officials in India to arrest and detain suspected terrorists, revolutionaries and violent dissidents and try them in special courts. Yet, the Repressive Laws Committee had strongly recommended in 1921 the repeal of all regulations authorizing executive detention. It was headed by the political moderate, Tej Bahadur Sapru, and it was obviously perfectly aware of the risks of not doing so at the time of the anti-Rowlatt protests taking place in Punjab. The decision to doggedly proceed nonetheless with draconian coercive legal measures where, as Durba Ghosh puts it, 'the language and logic of this new legislation drew substantially from the terms of the Defence of India Act of 1915 and the Rowlatt Act',[9] was nothing short of an incitement to violence by the colonial government. This is clear from the death of Lala Lajpat Rai, who was protesting against the Simon Commission in Lahore in 1928.

In 1919, the Montagu-Chelmsford Reforms led to the passing of the Government of India Act 1919. This introduced governance by diarchy in India, which consisted of double government. This was done by dividing the executive branch of each provincial government into two tiers. The first consisted of executive councillors appointed by the Crown. This was just as it had always been before. It was the undemocratic tier of governance. The second consisted of ministers chosen by the governor from the elected members of the provincial legislature. This second tier had some semblance of democratic legitimacy. This system of diarchy was opposed by Indian